



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: County Pocket Annexation #9
Date: December 8, 2025

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral December 8, 2025
- Public Services Committee December 15, 2025
- Final consideration December 22, 2025

This annexation is comprised of 26 properties 100% surrounded by the City (See attached map). Of the 26 parcels, all are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, December 8, 2025	Resolution certifying compliance introduction
Monday, December 15, 2025	Public Services Committee
Monday, December 22, 2025	Final consideration of resolution
Monday, January 5, 2026	Zoning consideration by Planning Commission
Monday, January 12, 2026	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Tuesday, January 20, 2026	Annexation and Zoning ordinances Public Services Committee
Monday, January 26, 2026	Annexation and Zoning ordinances Governing Body second reading
Monday, February 2, 2026	Annexation and Zoning ordinances Public Services Committee
Monday, February 9, 2026	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately February 13, 2026	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN NORTH CHEYENNE, GENERALLY LOCATED SOUTH OF STOREY BOULEVARD, EAST OF POWDERHOUSE ROAD, NORTH OF DELL RANGE BOULEVARD, AND WEST OF RIDGE ROAD."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for certain tracts of land located in north Cheyenne, comprising of approximately 277.59 acres, more or less, as depicted in Exhibit A, which is attached hereto and incorporated herein by this reference;

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating annexation proceedings by cities and towns and requires that a resolution be adopted by the Governing Body certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following criteria found in Wyoming Statute § 15-1-402(a):

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the City of Cheyenne;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;
- (v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and
- (vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, the City of Cheyenne has created an annexation report, which contains, at a minimum, the required information from Wyoming Statute § 15-1-402(c);

WHEREAS, the City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412 and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the territory as shown in Exhibit A, complies with Wyoming Statute §15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

